

		Litem was served with the Amendment adding her as Doe 11. (ROA 700). Arguably, Defendants were not amendable to service until a Guardian Ad Litem was appointed. Moreover, prosecution of the action as to all minors appears to have been stayed while the issues relating to the Guardian Ad Litem were resolved. As to Doe 12, Cynthia Alvarez, she was not sub'd in as a Doe until 5/19/2026. (ROA 563). Because the original Complaint only went up to DOE 10, the statute does not start on the date the original Complaint was filed. Rather, the statute started on 1/29/2025 when the SAC was filed naming DOES 11-20. Therefore, Plaintiff has until 2028 to serve Defendant Cynthia. The Court takes judicial notice of its own documents only, and RJNS are otherwise denied. Plaintiff to give notice.
112	Ramirez vs. Costco Wholesale Corporation 24-01443647	Motion for Summary Judgment and/or Adjudication Defendant Costco Wholesale Corporation ("Costco") moves for summary judgment or, in the alternative, adjudication of issues as to Plaintiff Robert Ramirez's ("Plaintiff") complaint. For the reasons set forth below, the motion is DENIED. Preliminary Issues As an initial matter, the opposition was not timely filed. Plaintiff's counsel has submitted a declaration extensively recounting the reasons why the opposition was not timely filed, which include various illnesses of its attorneys. In reply, Costco urges the court to disregard the untimely opposition but does not seek additional time to prepare its reply or contend that it

	was prejudiced. Accordingly, the Court will consider the opposition. Plaintiff's request for a continuance of the hearing pursuant to CCP §437c(h) is denied. Section 437(c)(h) provides, in relevant part: If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. . . Although Plaintiff provided a declaration from his counsel in support of the opposition, the declaration does not address the request for a continuance. Merits A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (CCP §437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 (pleadings serve as the outer measure of materiality in a summary judgment motion)). Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) The causes of action asserted in the complaint against Costco and challenged by way of this motion are the first cause of action for intentional interference with
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	prospective economic advantage; second cause of action for violation of the Unruh Act; ninth cause of action for negligence; tenth cause of action for negligent interference with prospective economic advantage; eleventh cause of action for discrimination; and thirteenth cause of action for unfair business practices (Bus. & Prof. Code §§ 17200 et seq.) The Court notes that the eighth cause of action for Civil Rights Violation under Civil Code §52.1 and the twelfth cause of action for negligent infliction of emotional distress are also pled against Costco, but Costco has not made any argument regarding those causes of action, nor have they been included in any of the issues for adjudication. (The Court further notes that Costco’s demurrer was sustained as to the seventh cause of action for harassment, and Plaintiff never amended the complaint.) Accordingly, insofar as the motion requests summary judgment as to the entirety of Plaintiff’s complaint, it is denied. Issue Nos. 1-3: Plaintiff’s First, Ninth and Tenth Causes of Action Lack Merit Because Plaintiff Cannot Establish Damages. Costco contends that Plaintiff’s first cause of action for intentional interference with prospective economic advantage, ninth cause of action for negligence and tenth cause of action for negligent interference with prospective economic advantage against Costco lack merit because Plaintiff cannot establish damages. Costco contends that Plaintiff’s agreement with Instacart did not guarantee any amount of income and that Plaintiff was not terminated by Instacart, so he cannot show economic damages. (UF 33-35.) The elements of a cause of action for intentional interference with prospective economic advantage “are usually stated as follows: ‘ “(1) an economic
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		relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant." [Citations.]' " (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1153.) "The tort of negligent interference with prospective economic advantage is established where a plaintiff demonstrates that (1) an economic relationship existed between the plaintiff and a third party which contained a reasonably probable future economic benefit or advantage to plaintiff; (2) the defendant knew of the existence of the relationship and was aware or should have been aware that if it did not act with due care its actions would interfere with this relationship and cause plaintiff to lose in whole or in part the probable future economic benefit or advantage of the relationship; (3) the defendant was negligent; and (4) such negligence caused damage to plaintiff in that the relationship was actually interfered with or disrupted and plaintiff lost in whole or in part the economic benefits or advantage reasonably expected from the relationship." (Venhaus v. Schultz (2007) 155 Cal.App.4th 1072, 1078, internal citations omitted.) The elements of a negligence cause of action are a legal duty owed by the defendant to the plaintiff to use due care, breach of that legal duty, causation, and injury to the plaintiff. (Holmes v. Summer (2010) 188 Cal.App.4th 1510, 1528.) "The torts of negligent or intentional interference with prospective economic advantage require proof of various elements as a prerequisite to recovery. However, as a matter of law, a threshold causation requirement exists for maintaining a cause of action for either tort, namely, proof that it is reasonably probable that the lost economic advantage would have been
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	realized but for the defendant's interference.” (Youst v. Longo (1987) 43 Cal.3d 64, 71 (emphasis in original).) Thus, it is not necessary for the plaintiff to prove that there was an express agreement that the plaintiff would earn a minimum amount; no contractual relationship is required at all. (See, e.g., Pacific Gas & Electric Co. v. Bear Stearns & Co. (1990) 50 Cal.3d 1118, 1128 (noting that, “if we protect an economic relationship that is wholly prospective from outside interference, we must also protect contractual relationships that are subject to termination.”)) Further, there is no requirement that any agreement have been fully terminated. (See id. at 1129 (“Other cases have pointed out that while the tort of inducing breach of contract requires proof of a breach, the cause of action for interference with contractual relations is distinct and requires only proof of interference.”)) As Costco has not met its burden summary adjudication as Issue Nos. 1, 2 and 3 is DENIED. Issue Nos. 4, 6 and 7: Plaintiff’s First, Ninth and Tenth Causes of Action Lack Merit Because Costco is Not Vicariously Liable for the Acts of Star Pro’s Employees Costco contends that Plaintiff’s first cause of action for intentional interference with prospective economic advantage, ninth cause of action for negligence and tenth cause of action for negligent interference with prospective economic advantage against Costco lack merit because Costco is not vicariously liable for the acts of Star Pro’s employees. This argument, even if accepted, does not dispose of these causes of action against Costco. The allegations are not that Costco should be liable for Star Pro’s wrongful acts, but that Costco itself engaged in
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		wrongful acts, including reporting Plaintiff to Instacart without justification, failing to implement or enforce reasonable policies and procedures to prevent harassment, discrimination, and intimidation on Costco's premises, and barring Plaintiff from fulfilling Instacart orders at its locations without a legitimate reason. (Compl. ¶¶ 38, 100, 108.) Thus, Costco has not met its moving burden as to Issue Nos. 4, 6 and 7. Accordingly, summary adjudication as to Issue Nos. 4, 6, and 7 is DENIED. Issue Nos. 5, 8 and 9: Second, Eleventh and Thirteenth Causes of Action for Violation of Unruh Civil Rights Act Lacks Merit Because Costco is Not Vicariously Liable for the Acts of Star Pro's Employees Costco contends that Plaintiff's second cause of action for violation of Unruh Civil Rights Act, eleventh cause of action for intentional discrimination in violation of Unruh Civil Rights Act, and thirteenth cause of action for unfair business practices lack merit because Costco is not vicariously liable for the acts of Star Pro's employees. Costco has not met its burden as to the second cause of action for violation of Unruh Civil Rights Act. The allegations of the Complaint are that "Plaintiff was singled out among other Instacart Personal Shoppers, including his fiancé, who were not of Hispanic ethnicity, and subjected to differential treatment." (Compl. ¶46(b).) Not all of the acts alleged in the Complaint are attributable to Star Pro. Ultimately, Costco banned Plaintiff from its premises. (Compl. ¶ 28; UF 72.) Costco has not provided any evidence to rebut allegations that Costco's ban on Plaintiff was intentionally discriminatory. The allegations of the eleventh cause of action for intentional discrimination in violation of Unruh Civil
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		Rights Act are similar to those supporting the second cause of action. (See Compl. ¶¶117, 28.) Finally, the thirteenth cause of action for unfair business practices is premised, in part, on Plaintiff's allegations of violations of the Unruh Civil Rights Act. Accordingly, summary adjudication as to Issue Nos. 5, 8 and 9 is DENIED. Issue Nos. 10 and 11: Punitive Damages As its tenth issue for adjudication, Costco contends that Plaintiff cannot recover punitive damages against Costco because Plaintiff cannot establish by clear and convincing evidence that Costco acted with malice, oppression or fraud. Similarly, Costco's eleventh issue for adjudication is that Plaintiff cannot recover punitive damages against Costco because Plaintiff cannot establish by clear and convincing evidence that a corporate officer, director or managing agent of Costco knew of, authorized, ratified or carried out the alleged malice, oppression or fraud. "A defendant 'has shown that the plaintiff cannot establish at least one element of the cause of action by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.' " (Chavez v. Glock, Inc. (2012) 207 Cal.App.4th 1283, 1301-1302.) "A defendant can satisfy its initial burden to show an absence of evidence through 'admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing [citation removed], or through discovery responses that are factually devoid.'" (Id. at p. 1302.) "Only after the defendant's initial burden has been met does the burden shift to the plaintiff to demonstrate, by reference to specific facts, not just allegations in the pleadings, there is a triable issue of material fact as to the cause of action." (Ibid.)
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		Here, Costco attempts to demonstrate that Plaintiff cannot show evidence of sufficient to support punitive damages with video footage of four incidents, as well as Plaintiff's deposition testimony, and references to the Complaint. This evidence is insufficient to meet Costco's moving burden in demonstrating a lack of evidence. The deposition testimony from Plaintiff is not tantamount to an admission that Plaintiff has no evidence to support his claim for punitive damages, nor does the deposition testimony constitute a factually devoid discovery response. Accordingly, summary adjudication as to Issue Nos. 10 and 11 is DENIED. Moving party to give notice.
113	Reinhardt vs. Bear Brand Ranch Community Association 26-01552314	1. Anti SLAPP Motion Defendant Bear Brand Ranch Community Association ("Defendant") moves to strike the Complaint pursuant to Code of Civil Procedure section 425.16. Plaintiffs Douglas F. Reinhardt ("Plaintiff") opposes the motion. "[T]he anti-SLAPP statute is designed to protect defendants from meritless lawsuits that might chill the exercise of their rights to speak and petition on matters of public concern. [Citations.] To that end, the statute authorizes a special motion to strike claims 'arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue.' " (Wilson v.